

Federal Constitution

NOTES

(2) This Article does not apply to the High Commissioner or the Chief Secretary.

Waiver or postponement of oath of office where appointment continues under this Part

177. A person who, under any provisions of this Part, holds office under the Federation by virtue of having been the holder of a corresponding office immediately before Merdeka Day may, until Parliament otherwise provides, perform his functions without taking the oath required in the case of other holders of that office.

Remuneration after Merdeka Day

178. Until Parliament otherwise provides, the remuneration payable to the persons holding the offices of Prime Minister and other Ministers shall be the same as was payable, immediately before Merdeka Day, to the Chief Minister and other Ministers of the Federation respectively.

Contributions in respect of joint services

179. Any agreement in force immediately before Merdeka Day relating to the proportion of the remuneration payable by the Federation and any State in respect of any such employment as is mentioned in Clause (2) of Article 133 shall continue in force until superseded by a new agreement or federal law.

Preservation of pensions, etc.

180. (1) The Tenth Schedule to the Federation of Malaya Agreement 1948, shall continue in force on and after Merdeka Day, but with the modification that any reference therein to the High Commissioner shall be construed as a reference to the Yang di-Pertuan Agong.

(2) The said Schedule shall for the purposes of this Constitution be deemed to be federal law and may, subject to the provisions of Article 147, be amended and repealed accordingly.

(3) In its application to any law made under Clause (2) Article 147 shall have effect as if references therein to an award included compensation.

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PART XIV

SAVING FOR RULERS' SOVEREIGNTY, ETC.

Saving for Rulers' sovereignty, etc.

181. (1) Subject to the provisions of this Constitution, the sovereignty, prerogatives, powers and jurisdiction of the Rulers and the prerogatives, powers and jurisdiction of the Ruling Chiefs of Negeri Sembilan within their respective territories as hitherto had and enjoyed shall remain unaffected.

(2) No proceedings whatsoever shall be brought in any court against the Ruler of a State in his personal capacity except in the Special Court established under Part XV.

PART XV

PROCEEDINGS AGAINST THE YANG DI-PERTUAN AGONG
AND THE RULERS**The Special Court**

182. (1) There shall be a court which shall be known as the Special Court and shall consist of the Chief Justice of the Federal Court, who shall be the Chairman, the Chief Judges of the High Courts, and two other persons who hold or have held office as judge of the Federal Court or a High Court appointed by the Conference of Rulers.

(2) Any proceedings by or against the Yang di-Pertuan Agong or the Ruler of a State in his personal capacity shall be brought in a Special Court established under Clause (1).

(3) The Special Court shall have exclusive jurisdiction to try all offences committed in the Federation by the Yang di-Pertuan Agong or the Ruler of a State and all civil cases by or against the Yang di-Pertuan Agong or the Ruler of a State notwithstanding where the cause of action arose.

(4) The Special Court shall have the same jurisdiction and powers as are vested in the inferior courts, the High Court and the Federal Court by this Constitution or any federal law and shall have its registry in Kuala Lumpur.

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Art. 181

Clause (2)

- a. *See* Article 160(2) definition of “Ruler”.
- b. *See* Federal Statute Law Revision (Suit Against the Ruling Houses) Act 1966 [Act 8/1966].
- c. The words “except in the Special Court established under Part XV” were inserted after the word “capacity” by Act A848, section 7, in force from 30-03-1993.

Part XV, Art. 182 & 183

Inserted by Act A848, section 7A, in force from 30-03-1993.

Note:

No proceedings whatsoever shall be brought in any court or in the Special Court against the Yang di-Pertuan Agong or the Ruler of a State in his personal capacity in respect of anything done or omitted to be done by him before the coming into force of the Constitution (Amendment) Act 1993—*See* Section 8 of Act A848.

Art. 182

Clause (1)

The words “Chief Justice of the Federal Court”, “Judges” and “Federal” substituted respectively for the words “Lord President of the Supreme Court”, “Justices” and “Supreme” by Act A885, paragraph 42(a), in force from 24-06-1994.

Clauses (4) & (5)

The word “Federal” substituted for the word “Supreme” by Act A885, paragraph 42(b), in force from 24-06-1994.

Clause (7)

The words “Chief Justice” substituted for the words “Lord President” by Act A885, paragraph 42(c), in force from 24-06-1994.

(5) Until Parliament by law makes special provision to the contrary in respect of procedure (including the hearing of proceedings *in camera*) in civil or criminal cases and the law regulating evidence and proof in civil and criminal proceedings, the practice and procedure applicable in any proceedings in any inferior court, any High Court and the Federal Court shall apply in any proceedings in the Special Court.

(6) The proceedings in the Special Court shall be decided in accordance with the opinion of the majority of the members and its decision shall be final and conclusive and shall not be challenged or called in question in any court on any ground.

(7) The Yang di-Pertuan Agong may, on the advice of the Chief Justice, make such rules as he may deem necessary or expedient to provide for the removal of any difficulty or anomaly whatsoever in any written law or in the carrying out of any function, the exercise of any power, the discharge of any duty, or the doing of any act, under any written law, that may be occasioned by this Article; and for that purpose such rules may make any modification, adaptation, alteration, change or amendment whatsoever to any written law.

No action to be instituted against the Yang di-Pertuan Agong or a Ruler except with the consent of the Attorney General personally

183. No action, civil or criminal, shall be instituted against the Yang di-Pertuan Agong or the Ruler of a State in respect of anything done or omitted to be done by him in his personal capacity except with the consent of the Attorney General personally.

SCHEDULES

SCHEDULES

FIRST SCHEDULE

[Articles 18(1), 19(9)]

Oath of Applicants for Registration or Naturalization

I of
 hereby declare on oath that I absolutely and entirely renounce and abjure all
 loyalty to any country or State outside the Federation, and I do swear that I
 will be faithful and bear true allegiance to His Majesty the Yang di-Pertuan
 Agong and be a true, loyal and faithful citizen of the Federation.

SECOND SCHEDULE

[Article 39]

PART I

[Article 14(1)(a)]

CITIZENSHIP BY OPERATION OF LAW OF PERSONS BORN
BEFORE MALAYSIA DAY

1. (1) Subject to the provisions of Part III of this Constitution and anything
 done thereunder before Malaysia Day, the following persons born before
 Malaysia Day are citizens by operation of law, that is to say:

- (a) every person who immediately before Merdeka Day, was a citizen of the
 Federation by virtue of any of the provisions of the Federation of Malaya
 Agreement 1948, whether by operation of law or otherwise;
- (b) every person born within the Federation on or after Merdeka Day
 and before October 1962;
- (c) every person born within the Federation after September 1962, of
 whose parents one at least was at the time of the birth either a
 citizen or permanently resident in the Federation, or who was not
 born a citizen of any other country;
- (d) every person born outside the Federation on or after Merdeka Day
 whose father was a citizen at the time of his birth and either was
 born in the Federation or was at the time of the birth in service
 under the Government of the Federation or of a State;
- (e) every person born outside the Federation on or after Merdeka Day
 whose father was a citizen at the time of the birth if the birth
 was, or is, within one year of its occurrence or within such longer
 period as in any particular case was or is allowed by the Federal
 Government, registered at a consulate of the Federation or, if it
 occurred in Singapore, Sarawak, Brunei or North Borneo, registered
 with the Federal Government.

(2) A person is not a citizen by virtue of paragraph (b) or (c) of subsection (1)
 if, at the time of his birth, his father, not being a citizen, possessed such immunity

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First Schedule

The words “faithful and bear true allegiance to His Majesty the Yang di-Pertuan Agong and be a true, loyal and faithful citizen of the Federation” substituted for the words “a true, loyal and faithful citizen of the Federation, and will give due obedience to all lawfully constituted authorities in the Federation” by Act 14/1962, section 26, in force from 01-10-1962.

Second Schedule

PART I

1. Added by Act 26/1963, subsection 24(1), in force from 16-09-1963.
2. Heading amended by Act 59/1966, section 2, in force from 09-08-1965, by the deletion of the words “, OTHER THAN SINGAPORE CITIZENS” which appeared at the end.